



SPONSOR: Rep. Shupe & Sen. Hocker
Rep. Yearick; Sen. Richardson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 112

AN ACT TO AMEND TITLES 15 AND 21 OF THE DELAWARE CODE RELATING TO PHOTOGRAPHIC IDENTIFICATION IN DELAWARE ELECTIONS AND OBTAINING NONDRIVER IDENTIFICATION CARDS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 4937, Title 15 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4937. Voting procedure.

4 (a) A voter, upon entering the room where an election is being held, shall announce that voter's own name and
5 address and provide ~~proof of identity~~ photographic identification, specifically, a driver's license, a Nondriver Identification
6 Card issued by the Division of Motor Vehicles, a United States Passport, or an official military identification card,
7 whereupon the clerks shall place a mark or make a notation of his or her name upon the election district record. ~~In the event~~
8 ~~the voter does not have proof of identity with them, the voter shall sign an affidavit of affirmation that the voter is the~~
9 ~~person listed on the election district record.~~

10 Section 2. Amend § 3103, Title 21 of the Delaware Code by making deletions as shown by strike through and
11 insertions as shown by underline as follows:

12 § 3103. Issuance fee; renewal; qualifications.

13 (a) Upon receipt of the application ~~and a fee of \$40,~~ the Division shall issue an identification card which shall
14 expire and be renewable on the eighth anniversary date of the birth of the applicant next following the date of its issuance
15 unless the birthdate be February 29, and in which event the identification card will expire on February 28 every eighth year.
16 A permanent resident foreign national may be issued a full 8-year identification card. However, an identification card
17 issued to a temporary foreign national must be limited to the period of time that the temporary foreign national is authorized
18 to be in the United States. The first identification card shall be issued to the applicant free of charge. Subsequent
19 identification cards issued after the expiration of the initial card shall be issued for a fee of \$20.00.

SYNOPSIS

To protect the integrity of our elections, this Act provides that in order to vote, a voter, prior to being permitted to vote, must be able to present a photographic identification, specifically a Driver's License or a Nondriver Identification Card issued by the Division of Motor Vehicles, or a United States Passport or a military identification card. In order to make obtaining an identification card easier on the general public, the first nondriver identification card issued by the Division shall be free, as opposed to the current fee of \$40.00. Subsequent cards, upon expiration, will be issued for a

reduced fee of \$20.00. Department of Elections for each county will now be required to conduct at least 2 countywide programs at locations reasonably convenient and accessible to the citizens.